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|----|---------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|    |                                                                                                         | <p>plaintiff will prevail or if the case lacks merit and was filed to harass or delay. (Code Civ. Proc., § 391.3.)</p> <p>Plaintiff has presented evidence, albeit sparse, there may be a probability of prevailing. He declares defendant's loading dock floor was painted with a shiny epoxy paint to facilitate cleaning, which made the floor slippery. The floor was covered with twigs and dirt due to a windstorm and defendant's employee apologized for failing to clean the floor after plaintiff slipped on the debris. Plaintiff asserts his statements about the incident have been consistent because he slipped on the floor and his knee hit the low trailer edge. Plaintiff also submits the declaration of witness Ruby Hunter, who declares to witnessing defendant's on-site manager apologize to plaintiff about not cleaning the floor of the loading dock and stating a report would be filed.</p> <p>The court will not make a credibility determination at this stage of the litigation. The court and/or jury will determine credibility at trial.</p> <p>Clerk to give notice.</p> |
| 11 | <p><b>Ngo vs. Westminster Professional Associates, LLC</b></p> <p><b>30-2023-01350083-CU-CO-CJC</b></p> | <p><b>Motion to Confirm Referee's Report and Recommendation</b></p> <p>Defendant, Westminster Professional Associates, LLC's belated motion to confirm referee's report and recommendation is DENIED.</p> <p>Defendant failed to follow the procedure set forth in Code of Civil Procedure section 643.</p> <p>Clerk to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 12 | <p><b>Ramos vs. Hamel Concrete, Inc.</b></p> <p><b>30-2025-01453311-CU-PO-CJC</b></p>                   | <p><b>Motion for Determination of Good Faith Settlement</b></p> <p>Defendants Kotobuki Seating International, Inc. fka Kotocorp (USA), Inc. and Interkal, LLC's motion for determination of good faith settlement as to their settlement with plaintiffs is DENIED.</p> <p>Defendants have not demonstrated the settlement was made in good faith under <i>Tech-Bilt, Inc. v. Woodward-Clyde &amp; Assocs.</i> (1984) 38 Cal.3d 488, 499.) There is no copy of the settlement agreement provided to the court, no rough approximation of plaintiff's total recovery and settlor's proportionate liability, and no analysis of settling defendants' financial conditions and policy limits.</p> <p>Clerk to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                   |